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PLACEMENT SERVICES AGREEMENT

This Agreement ("Agreement") is made and entered into at **[CITY]** on this **[DATE]**,

BY

[CLIENT COMPANY NAME] bearing **[GSTIN]**, having its Registered office at **[CLIENT REGISTERED ADDRESS]** (hereinafter referred to as "**Client**", which expression shall, unless excluded by or repugnant to the subject or context whereof shall be deemed to include its successors and permitted assigns), of the ONE PART;

AND

Rishi Jobs, having its Registered office at 402, Marcello Building, Opposite Shyam Mandir, VIP Road, Vesu, Surat – 395007, Gujarat, India, hereinafter referred to as "**Service Provider**", which term shall include Affiliates of Service Provider of the OTHER PART.

Both Client and Service Provider are collectively referred to as "**Parties**" and individually as "**Party**".

WHEREAS Service Provider is in the business of providing human resources related solutions and services to its clients and Client has agreed to avail the services of Service Provider for its business and Service Provider has agreed to provide its services to Client upon the terms and conditions as set forth hereinafter.

AND WHEREAS the parties are desirous of recording the terms and conditions under or upon which the said services are to be rendered by Service Provider.

NOW THIS AGREEMENT WITNESSETH AND IT IS HEREBY AGREED BY AND AMONGST THE PARTIES HERETO AS FOLLOWS:

1. This Agreement shall be effective from the date of signing and will be valid till the termination of the same. During the term of this Agreement, either party can terminate it by providing a written notice of at least Thirty (30) days provided that the Notice of Termination shall be issued by an Authorized Person from either party and not by the person holding any lower Designation who signs the Agreement.
2. Service Provider will engage the required numbers of trained, skilled and experienced technician(s)/personnel(s) to diligently perform the services as mentioned under this agreement for Client.
3. Client shall pay to Service Provider upon the selection of the candidate recommended by the Service Provider for its services within **[PAYMENT DAYS]** days from the date of joining of the candidate. The Service Provider shall raise invoice on the day of the candidate joining the Client. The



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payment shall be subject to deduction of TDS as applicable under Income Tax laws from time to time and shall be paid through NEFT/RTGS in favor of Service Provider. Recruitment fee will be the percentage of Annual CTC of the candidate selected.

SL. No.	Description	Fees (As a percentage of Annual CTC)
[NO.]	[SERVICE DESCRIPTION]	[FEE STRUCTURE]

The fees mentioned above is exclusive of applicable taxes

The detailed scope of the services relating to this present agreement is mentioned and included in "Annexure-A" and will form the part of this agreement.

4. In case the selected candidate resigns either on his own or performance issues from Client before Ninety (90) Days from his/her date of joining, the Service Provider will stand liable to provide replacement for the same without any additional cost within 1 month of cessation for such candidate/candidate's or refund the entire recruitment fees paid by Client for the said candidate or Service Provider can adjust the recruitment fees for such candidate/candidates with next invoice. For any reason (such as not fit for the position, discipline, growth benefit, leave and others) if selected candidate/ candidates resign post Ninety (90) Days, no refund or replacement will be provided.

5. The Service Provider will ensure to not contact any candidate of the Client joined through the Service Provider for a period of 01 year. Notwithstanding anything contained related to said clause will include:

- a) Contacting the candidate apart for placement i.e., Feedbacks etc.
- b) If any candidate itself contacts the Service Provider for placement.

6. In case the candidate after joining the Client, is found doing unethical or fraudulent practices, the Client can take strict legal action against the candidate. The service provider is not liable in any case of misdoings by the candidate.

7. Any dispute and or difference arising out of, or relating to this contract including interpretation of its terms will be resolved through joint discussion of the Authorized Representatives of the concerned Parties. However, if the disputes are not resolved by the discussions, then the matter will be referred for adjudication to the arbitration of a person mutually appointed by the parties in accordance with the Arbitration & Conciliation Act, 1996. The judicial proceeding shall be in English Language. The arbitration shall be at a place as mutually decided by both the Parties. The award passed in the arbitration proceedings shall be final and binding on both the Parties. The cost of arbitration proceedings shall be equally borne by both the Parties. Each Party shall individually bear the fees of their respective Advocate/Counsel for the proceedings.



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8. The invalidity or unenforceability of any clauses of this Contract shall not affect the validity or enforceability of any clause of this Contract, which shall remain in full force and effect.

9. This Agreement along with its "Annexure-A" constitutes and represents the entire agreement between the Parties hereto on the subject matter hereof and cancels and supersedes all prior arrangements, agreements and understandings, whether oral or written, on the subject matter hereof and no modification or amendment of any of the terms of this Agreement shall be valid and binding unless signed by or on behalf of both Parties hereto.

Both the Parties jointly accept the above terms and duly affix the signature as under:

Signed for and on behalf of

[CLIENT COMPANY NAME]

Client aforesaid,

Signed for and on behalf of,

Rishi Jobs

Service Provider aforesaid

Authorized Signatory & Stamp

Name: **[AUTHORIZED SIGNATORY NAME]**

Designation: **[DESIGNATION]**

Date: **[DATE]**

Authorized Signatory & Stamp

Name: Mr. Rishi Surana

Designation: Proprietor

Date: **[DATE]**



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ANNEXURE A

SCOPE OF WORK / SERVICES:

Obligations of Service Provider:

1. Service Provider shall receive and record the requirements of the Client and ensure its accuracy.
2. Service Provider would carry out the process for sourcing and shortlisting of candidates as per the process of recruitment against the requirements and identify suitable, potential candidates as per specification of the Client and supply the resumes/ CV of the said candidates to the Client.
3. Service Provider shall be responsible for ensuring that specific and correct information is given to the Potential Candidates about the Client.
4. Service Provider shall play the role of a Coordinator between the Client and Potential Candidates in fixing the Venue, time and such other matters relating to Interview (in person or virtual, as mutually agreed) and recruitment process, till a prospective Candidate joins the service of the Client.

Obligations of Client:

1. Client shall provide brief and comprehensive job description of the requirements expected from a potential candidate for its job profile which includes the Qualification, Experience, CTC etc, for enabling the Service Provider to effectively perform its obligations under this Agreement.
2. If Client has considered or in possession of resume of a Potential Candidate and if Service Provider forwards the same to the Client, then Client shall intimate the same to Service Provider within Two (02) days of receiving such Resume.
3. Client shall exercise abundant care and caution while dealing with the Resume provided by Service Provider so that the same may not be misused.
4. Client shall intimate to Service Provider within One (01) day of appointing a potential candidate, if the Candidate is nominated by Service Provider.
5. Post-selection of a candidate, the client cannot change the terms of contract with the candidate. A later change of salary or job role will not be entertained as a reason for rejection and no refund or replacement will be provided in such case.

Obligations of Both the Parties:



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1. If a candidate is appointed by Client for a position other than that position for which the Candidate is nominated by the Service Provider then the terms of this Agreement shall be deemed to be applicable to the post to which the Candidate is appointed.
2. Service Provider shall not be liable for any inadequacies and inaccuracies for the information provided by the Client to the Service Provider and understood by the Potential Candidate.
3. Client shall be the sole & ultimate deciding authority for the recruitment of potential candidates nominated by the Service Provider.



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CLIENT'S INFORMATION SHEET

(To be provided and filled by the Client)

Company Name	
Regd. Address	
Website	
TAN NUMBER	
PAN NUMBER	
GST NUMBER	

Contact details for Billing/Payments

Name:	Invoice E-mail Address:
Designation:	CC Invoice E-mail Address:
Contact Address:	
Mobile:	Desk Phone:

Contact details for HOD-HR

Name:	E-mail Address:
Desk Phone:	Mobile: